# IN THE COURT OF CIVIL JUDGE (SENIOR DIVISION), KUSHINAGAR AT PADRAUNA, UTTAR PRADESH

123/26

**GULAM ANSARI VERSUS ABID ANSARI AND OTHERS**

**IN THE MATTER OF:**

Gulam Ansari ... Plaintiff

**VERSUS**

Abid Ansari, Ishrafil Ansari, Sakil Ansari ... Defendant

## Application on behalf of the Plaintiff for issuance of summons to the Defendant

*Order V, Code of Civil Procedure, 1908*

**MOST RESPECTFULLY SHOWETH:**

**Defendant's address for service:** All Residents of Village – Batrauli, Post Office – Kubersthan, Police Station – Kubersthan, District – Kushinagar, Uttar Pradesh – 274304.

**FACTUAL BACKGROUND**

1. 1. The suit for recovery of ancestral land (Suit No. 123/26) is pending before the Civil Judge (Senior Division), Kushinagar at Padrauna.

2. 2. The plaintiff, Gulam Ansari, confirms that summons have not previously been issued to any of the defendants.

3. 3. The plaintiff seeks issuance of summons to the defendants at the address mentioned above in accordance with the provisions of Order V CPC.

4. 4. No prior service attempts or returned summons have been made, and the plaintiff requests the Court’s direction for the first issuance of summons.

**GROUNDS**

1. The plaintiff is entitled to issuance of summons under Order V of the Code of Civil Procedure, 1908 when no summons have yet been served.

2. The plaintiff has not abandoned his lawful share in the suit property and therefore is entitled to invoke his right to sue the defendants.

**DOCUMENTS RELIED ON**

- Saved plaint as filed in the Court

**PRAYER**

Most respectfully showeth that this Hon'ble Court may be pleased to issue summons to the defendants Abid Ansari, Ishrafil Ansari and Sakil Ansari at the address specified above through the prescribed mode of service and pass any further order as deemed fit.

**AND FOR THIS ACT OF KINDNESS, THE PLAINTIFF AS IN DUTY BOUND SHALL EVER PRAY.**

Place: Kushinagar, Uttar Pradesh
Date: 2026-10-21

**Plaintiff**
**Through Counsel**
Parvez Akhtar
Enrollment No.: UP 85658/2020